

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 827

Introduced by DeKay, 40; Ibach, 44; Juarez, 5.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to natural resources districts; to amend
- 2 section 2-3232, Reissue Revised Statutes of Nebraska; to provide for
- 3 programs relating to soil and water; and to repeal the original
- 4 section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 2-3232, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 2-3232 Each district shall have the power and authority to:

4 (1) Make studies, investigations, or surveys and do research as may
5 be necessary to carry out its authorized purposes, enter upon any land,
6 after notifying the owner or occupier, for the purpose of conducting such
7 studies, investigations, surveys, and research, and publish and
8 disseminate the results. Entry upon any property pursuant to this section
9 shall not be considered trespass, and damages are not recoverable on that
10 account alone. In case of any actual or demonstrable damage to premises,
11 the district shall pay the owner of the premises the amount of the
12 damages. Upon failure of the landowner and the district to agree upon the
13 amount of damages, the landowner, in addition to any other available
14 remedy, may file a petition as provided in section 76-705. To avoid
15 duplication of effort, any such studies, investigations, surveys,
16 research, or dissemination shall be in cooperation and coordination with
17 the programs of the University of Nebraska, or any department thereof,
18 and any other appropriate state agencies; ~~and~~

19 (2) Conduct demonstration projects within the district on lands
20 owned or controlled by this state or any of its agencies, with the
21 cooperation of the agency administering and having jurisdiction thereof,
22 and on any other lands within the district, upon obtaining the consent of
23 the owners of such land or the necessary rights and interest in such
24 lands, in order to demonstrate by example the means, methods, and
25 measures by which soil and water resources may be conserved and soil
26 erosion in the form of soil blowing and soil washing may be prevented and
27 controlled. Demonstration projects shall be coordinated with the programs
28 of the Agricultural Research Division of the University of Nebraska
29 Institute of Agriculture and Natural Resources; and -

30 (3) A natural resources district may establish or participate in
31 programs to educate residents about or research practices to improve

1 water quality, water quantity management, or soil health practices. Such
2 programs may include conducting demonstration projects as provided in
3 section 2-3232 and hosting educational events to inform agricultural
4 producers and the general public about practices to protect and preserve
5 natural resources in the state. A district may enter into agreements with
6 agricultural producers, nonprofit organizations, companies, service
7 organizations, political subdivisions, public or private postsecondary
8 educational institutions, or state or federal agencies to establish or
9 participate in such programs.

10 **Sec. 2.** Original section 2-3232, Reissue Revised Statutes of
11 Nebraska, is repealed.